



**U.S. Department of Justice
Bureau of Alcohol, Tobacco, Firearms and Explosives
Transportation, Storage and Disposal
Statement of Work**

1) INTRODUCTION

The purpose of this Statement of Work (SOW) is to establish procedure for the contractor to provide processing, transportation, storage, and disposal of property/evidence services to the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF)

2) DEFINITIONS AND TERMS

- a) "AS IS, WHERE IS": All items to be sold with no warranty or guarantee whatsoever. Items are to be purchased exactly as they appear at auction. They will be sold based on their appearance only. "As is" is a disclaimer of warranties or representations. "Where is" denotes that the buyer takes the item as found and must remove it from the point of sale.
- b) CONTRACTING OFFICER (CO): A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.
- c) CONTRACTING OFFICER'S REPRESENTATIVE (COR): A Government employee who provides technical directions to the contractor. The COR is designated in writing by the CO.
- d) SUB-TASK ORDER (STO): An order placed by the COR obligating specific line-item services and tasks under the contract a STO can also be used by the COR to notify the contractor of other non-payment-related tasks.
- e) ASSET IDENTIFICATION NUMBER (AIN)/ CONSOLIDATED ASSET TRACKING IDENTIFICATION NUMBER (CATS ID): This is the asset seizure. contractor/ This is the seizure contractor TRANSPORTATION:
 - i. Small Box Truck (20 feet and below)
 - ii. Large Box Truck (21 feet and above)
 - iii. Tractor Trailer
- f) WAIT TIME: The period that labor and equipment are deployed and on standby waiting to provide services on an operation.
- g) LABOR: Personnel provided by the contractor to support client needs such as packaging, loading, shipping, transporting, securing, managing life cycle, inventorying, and disposing of property items.
- h) CONEX BOX: Metal container used to store various assets, standard size conex boxes are (10ft, 20ft, 40ft)
 - i. STORAGE: Custodial Levels
 - (1) Administrative Custody: Consigned property in secure storage where items are locked within a CONEX intermodal shipping container, bunker, or other secure enclosure which only authorized ATF personnel can enter and access
 - (2) Full Custody; Consigned property in secure storage where items are stored on pallets, in boxes, or other containers where the storage vendor has access and control over the items.
 - ii. Types of Storage
 - (1) General Indoor– This type of storage involves assets in both full and administrative custody items stacked on pallets or in boxes within a fully enclosed structure with substantial/permanent walls, roof, and floor which will allow for movement of Assets while controlling surface/environmental problems such as standing water, mud, dirt, dust, debris, pests and/or infestations. General indoor storage may involve climate control and usually involves full custody.
 - (2) General Indoor Climate Control – General indoor storage with a climate-controlled environment for the storage of items that are perishable or susceptible to degradation from exposure to heat, humidity, or cold.

- (3) Hazmat – This type of storage applies to items that fall within the U.S. Department of Transportation's (DOT) 9 categories of hazardous materials appearing in Appendix A of this Statement of Work. These items must be properly placarded and displayed while in custody in accordance with DOT regulations.

- i) Disposal –Online Auction Contractor, Sealed Bid Sale, Destruction Authorized Agency & Release Lien Holder, Claimant Owner

3) FACILITY LOCATION, PERFORMANCE AREA & TRANSITION PERIOD

- a) Contractor facility shall be located within the continental United States. ATF has offices in every state. ATF employees occasionally need to access the stored items and therefore storage locations should be within 30 miles of the ATF field office overseeing the stored items. The location of the ATF Field Office will be identified in each request for storage services to allow the contractor to plan the storage location within the 30-mile radius. In the event this radius is not possible the contractor shall advise the COR and request a variance for storage outside the 30-mile radius.
- b) The contractor shall be able to provide access to storage facilities, upon request from COR, between the hours of 8:30 AM and 5:00 PM, Monday through Friday, excluding Federal Government holidays. Upon prior notification, contractor must provide access at any other time as needed by ATF and ATF Contract employees at the time of the seizure. Contractor must provide an employee on the premises during any time that the ATF or ATF contractor employees are on site. Contractor shall provide a point of contact for 24 hours per day, 7 days per week, 365 days per year access.
- c) Storage locations can be added or withdrawn during the life of the contract dependent upon-Division needs.
- d) Contract Phase-In/Phase-Out: The Contractor shall be responsible for the phase in and the assumption of ongoing tasks in accordance with the COR's requests. Certain staff or number of staff of the incumbent (specified by the COR) shall be available during this period to aid new Contractor personnel, familiarize the Contractor with required services, and provide other guidance and assistance as mutually determined by the Government (COR) and the Contractor. The specific phase-in assistance to be provided shall be determined by the Government (COR). If/When the COR determines a specified time frame for phase-out activities to commence, or upon termination and/or completion of this contract, there will be a 7-day transition period, unless otherwise specified by the COR to complete the Phase-Out. Final payment will be held, at zero interest, until the COR certifies that the assigned work is complete. The contract will then be closed in accordance with FAR Part 4.804.
- e) The contractor, including the contractor's facility, shall be fully equipped and ready to begin performance within 30 calendar days after the award date.

4) FACILITY REQUIREMENTS

The contractor shall provide and operate a facility which fulfills the requirements set forth in this Statement of Work (SOW) throughout the life of the contract.

- a) Indoor Storage Requirements
 - i. The contractor must have signed Memorandums of Understanding (MOU) or Leasing Agreements, which will be used to secure the outdoor and indoor storage facilities, when submitting a proposal
- b) Physical Security Requirements
 - i. Indoor facility must have motion sensors.
 - ii. All entry points to indoor facility must have alarm contacts.
 - iii. Indoor facilities must limit both physical and visible access to assets stored and maintained by approved personnel only.

- iv. The contractor shall provide a detailed physical security plan that shall include at minimum:
 - 1) Facility Location – state the address of all locations to be utilized under this contract.
 - 2) Physical Security Requirement – describe area where the assets will be stored
 - 3) Photos – provide photos of the indoor and outdoor facility.
- v. Loss, theft, or damage to any asset while in the contractor's custody shall be reported within 24 hours to the COR. Loss/damage shall be replaced, repaired, or payment issued for the monetary value (with that of like or equal value) or as directed by the COR within 20 days of notification.
- vi. Asset theft and/or vandalism shall be reported to the local police department and to the COR within 24 hours of incident, and a copy of the police report shall be provided to the COR within 24 hours of receiving report.
- vii.
- c) Staffing and Access Requirements
 - i. The contractor shall be available between the hours of 8:30 AM and 5:00 PM, Monday through Friday, excluding Federal Government holidays. Any request for deviation of these standard hours must be approved in advance by the COR. Contractor shall provide a point of contact for 24 hours per day, 7 days per week, and 365 days per year access.
 - ii. Access is restricted to the contractor or their authorized employees, the CO/COR or his/her designee, or individuals accompanied by ATF personnel that are approved by the CO/COR. A list of all authorized contractor employees will be given to the COR upon award of this contract.
 - iii. ATF COR or COR designee will perform quarterly and unannounced inspections of facility, assets, case files, and processes.
 - iv. The contractor shall maintain a visitor's log that is a bound with numbered pages. The contractor shall deny any individual who requests access to the storage facility who has not been approved by the COR (this includes seizing agency personnel) in advance. The contractor shall annotate the names of those individuals, and if applicable, the organizations represented and immediately notify the COR. COR shall notify the contractor of scheduled authorized visitors through the issuance of Sub Task Order (STO). This STO is for awareness and will not be associated with any CLINS.
 - v. Any requests for information regarding seized Assets shall be forwarded to the COR.
- d) The contractor shall assume sole responsibility, as well as financial liability for all assets under their control at all times.
- e) If the contractor uses sub-contractors for any phases of the asset's lifecycle during the contract period, the contractor is solely and ultimately responsible for all assets within their care. All communication with the COR will be through the main contractor and not the sub-contractors. If the prime contractor is not on-site regularly (i.e. maintain an office in Division or state), they must be able to attend all meetings at either the ATF Headquarters location or the contractor's facility (operated by the sub-contractor) as noted in the contract) within 48 hours' notice by the CO or COR.
- f) The contractor shall obtain and maintain insurance through the duration of the contract commensurate with the value of inventory. Contractor shall increase or decrease insurance coverage based on contractor's inventory being stored. It is the contractor's responsibility to maintain all insurance relative to storage and transportation all assets to be stored by ATF. The ATF shall be named as an additional insured on all applicable insurance policies. Said insurance policies shall be provided to the CO/COR at the onset of each option year, or if contractor makes changes to insurance policies at any other interval, or for any other reason. Post award, it is the responsibility of the COR to provide inventory list with values at the beginning of each fiscal quarter to the contractor. If throughout a fiscal quarter, a high valued asset is received in inventory, the COR shall notify the contractor and provide an updated inventory list with values. If a discrepancy is identified for lack of sufficient insurance coverage, the CO shall take the necessary steps to remedy the situation immediately. Contractor shall provide proof of insurance as requested at any time throughout the duration of the contract upon COR request within twenty-four (24) hours.

- g) The contractor shall have the ability to track all assets from pick-up to arrival at final destination as per the STO. (At minimum the tracking and record the following; driver name, fleet assigned, pickup /drop off time.).
- h) The contractor may be directed to move property to a location other than the contractor's storage facility.
- i) The contractor shall provide all personnel, equipment, tools, materials, supervision, and any other items and services necessary to fulfil the requirements set forth in this SOW.
- j) The assets shall be always kept secure while in the custody of the contractor.
- k) The contractor may be required to provide packing materials & supplies to include but not limited to additional pallets (if needed), shrink wrap, boxes & tape
- l) The contractor shall provide all labor to complete the task to include, but not limited to, a crew of workers, forklift with a forklift operator and pallet jacks.

5) INITIAL INTAKE

The following applies to all assets regardless of type:

- a) The contractor shall assume sole responsibility, as well as legal and financial liability for the asset from pick-up until disposal.
- b) Contractor can use an Asset Inventory management process for inventory control. This process will include, at a minimum:
 - i. Asset identifier (CATS ID)
 - ii. ATF case number
 - iii. Location of the asset (Sub K name)
 - iv. Description of the asset (to include container number if applicable)
 - v. Storage start date
 - vi. Type of storage
 - vii. Assigned Square Footage
- c) The contractor shall establish/maintain a separate case file for each Asset covered under this SOW. Electronic or paper case files shall be securely stored. Each case file shall include, at a minimum:
 - i. Intake inspection checklist
 - ii. Signed STO
 - iii. Records related to asset condition, storage, disposal, and all STOs
 - iv. Digital photos of asset or conex box
- d) If the contractor discovers a potentially hazardous substance, (which was not already previously identified) during initial intake or during any time while in the contractor's custody, the contractor shall contact the COR by close of business on day of discovery.
- e) All assets shall be marked with the Government's case number, complete asset ID number (CATS ID) and the date of ATF custody on the using a suitable marking substance, or on a printed sheet attached to the conex box or assets themselves.
- f) All digital photos shall be sent to COR via email within 3 days of receipt and are required for all Assets. At a minimum, photos must include pictures of the storage location, the conex and its identifying number if applicable, the overall items, and individual photos sufficient to identify what the assets are and the scope of the seizure.
- g) Contractor shall sign and date the STO showing receipt of the asset. The STO shall be sent to COR via email within 3 days of receipt.

6) STORAGE

- a) The contractor shall provide evidence that it has complied with all laws and ordinances associated with Asset storage. Applicable permits shall be kept current throughout the term of the contract.
- b) The contractor shall provide orderly and clean indoor and outdoor storage facilities, to include running water and a restroom, and should be controlled in such a manner as to eliminate standing water, mud, weeds, debris, pests and/or infestations. It shall be the contractor's responsibility to

- correct any issues at their cost.
- c) If additional facilities are required because of a need by the contractor, they must be approved in advance, in writing by the COR. If the contractor proposes a different facility during the contract term, the contractor assumes any costs for relocating currently stored Assets to the new facility.
- d) Assets shall be stored in a manner to preserve the integrity of the assets.
- e) Should any issues arise regarding the condition of the asset during the term of the contract, the COR shall be immediately notified.
- f) Contractor shall ensure that each pallet is always marked with corresponding AIN'S and AIN item numbers.
- g) The contractor shall keep an up-to-date electronic tracking system for all personal property in its possession. This system shall be able to identify exactly where a particular piece of property is located within the storage facility. The COR shall be given access to the contractor's computer tracking system or provided with reports of the inventory as requested. Any damage to sub-contractor property is the responsibility of the contractor while in the contractor's possession
- h) Conex box delivery - The Conex box must be delivered within 72 hours of notification, be. If unable to meet the timeframe of delivery or alarm it must be approved in writing by COR. The contractor must be prepared to provide a high security lock & tamper proof tag if requested in the consignment order. Conex's used are required to meet the following criteria:
 - i. Watertight
 - ii. Floors in good condition
 - iii. Doors and latch gear operate smoothly

7) **DISPOSAL**

- A. The COR shall determine the methods for disposal for all ATF Assets The contractor shall receive written instructions for the disposal of all assets. The various disposal methods include, but are not limited to, the following:
 - a) Online Auction by Contractor
 - b) Destruction
 - 1) Crushing
 - 2) Burning
 - 3) Detonation
 - c) Official Use by an Authorized Agency
 - d) Release to Lien Holder, Claimant, or Owner

B. Destruction

- a) Contractor may be required to dispose of assets via destruction, as directed by the COR.
- b) The contractor shall conduct all scheduled destructions in accordance with all applicable Federal, State, and Local laws, regulations, and ordinances.
- c) An STO shall be issued by the contractor for this disposal action. A copy shall be provided to the COR
- d) A destruction plan must be submitted and approved by ATF prior to destruction being accomplished
- e) This action shall be completed within thirty (30) calendar days of instruction and contractor is responsible for making arrangements.
- f) An ATF representative will attend destruction in person.
- g) Event must be videotaped or photographed by contractor.
- h) Upon disposal via destruction, the contractor shall execute the Certificate of Destruction.
- i)

C. Official Use or Transfer by an Authorized Agency

- a) Contractor may be instructed via STO that ATF will release or transfer an asset to an authorized agency as directed by the COR.

D. Release to Lien Holder, Claimant or Owner

- a) Contractor may be instructed to release an asset to a third party as directed by the COR.
Documents Required: Upon disposal via release to lien holder, claimant, or owner

E. The following persons shall be prohibited from purchasing property through the U.S. Department of Justice Asset Forfeiture Program and are also, therefore, barred from placing bids to buy such property:¹

- i. Defendants in Criminal Cases: The defendant from whom the property to be sold was forfeited.
- ii. DOJ Employees and ATF Contractors: DOJ Employees who have not received a waiver from their agency pursuant to 5 C.F.R. § 3801.104(a) and ATF contractors who have not received a waiver.
- iii. Civil Forfeiture Actions/Administrative Forfeiture: Any person whose conduct gave rise to a civil or administrative forfeiture of the property to be sold.
- iv. Insider Knowledge: Any person who, by virtue of their association with DOJ AFP, has acquired material, non-public, information about the property to be sold.
- v. Law Enforcement: Federal, state, and local law enforcement officers who perform duties associated with the seizure and forfeiture of property in conjunction with DOJ.
- vi. DOJ AFP Contractors: Contractors and subcontractors hired by or working with DOJ in the DOJ AFP or its agencies and their employees involved in the DOJ AFP.
- vii. Other Third Parties: Any person, in the reasonable judgment of the ATF, in consultation with the United States Attorney's Office or the Money Laundering and Asset Recovery Section, as appropriate, who may have received, from a prohibited purchaser, material, non-public, information, about the property to be sold, or whose purchase may give rise to the appearance of impropriety.
- viii. Special circumstances may rebut the presumption, i.e., supersede the above determination, that someone is or is not a prohibited purchaser in one or more of the above categories, as determined by the ATF and the relevant U.S. Attorney's Office (USAO), with the concurrence of its Ethics Officer, Office of General Counsel.
- ix.

H. Disposal via Sale (Online & Sealed Bid.)

- i. The COR will determine the preferred sales method for all ATF assets. The contractor shall provide the ability to perform all sales options listed within the SOW.
- ii. Contractor shall operate and maintain website for the advertisement of ATF assets.
Contractor Plan
- iii. Contractor shall have the ability to provide marketing plan upon request of COR. Plan should address at minimum: market research, advertising (sample), proposed sales campaign, security for viewing periods through sale, etc.
- iv. Contractor SHALL NOT separate CATS IDs for purposes of sale. CATS ID's coordinate with ATF Item Numbers which SHALL NOT be separated for purposes of sale. CATS ID's can be aggregated for sale but not separated.

I. Advertising for Online Auction by Contractor

- a) Contractor shall advertise all online auctions on the contractor's operated website. Contractor can advertise on any other platforms to increase customer base awareness of the sale at their own expense. If the COR deems appropriate to order any other specialty advertising, it will be ordered through the issuance of a STO.
- b) Contractor The contractor's Internet website will clearly state that the contractor is conducting sales of assets on behalf of the ATF.

¹Please note, for all sales, contractor shall obtain buyer's signature on ATF release form. The COR shall provide any information necessary for the completion of the form prior to obtaining signature (ex. Defendant's name and/or US Code violation)

- c) The website should clearly state where the Asset is located for purposes of public viewing purposes.
- d) Contractor SHALL NOT DISCLOSE CATS ID & ATF case number in any advertisement.
- e) Contractor shall send COR the link to their website for posting of advertisement on the ATF and Department of Justice websites.
- f)
- J. Viewing Period for Online Auction by Contractor
 - a) The contractor, prior to viewing day, shall prepare the property for sale to maximize potential sales value.
 - b) The contractor is required to allow the public to view and access the Assets prior to the day of auction. The viewing day shall be for an 8-hour period, and the viewing shall be on the day prior to sale. Contractor can hold additional viewing days. Any deviation for the minimum viewing period must be approved in advance by the COR.
 - c) Adequate security during the viewing day shall be the responsibility of the contractor. Contractor shall provide a knowledgeable representative who can provide the public with information related to the asset as determined by the COR. Contractor is ultimately responsible during this timeframe and should ensure the viewing period and representative maintains the utmost professionalism as they represent ATF.
 - d) The viewing area shall be segregated from the remainder of the storage facility by a barrier to prevent unauthorized access to the non-forfeited assets if applicable. Viewing area should be orderly, clean, and free of potential hazards. If the viewing period is to be held outside, contractor shall make arrangements in case of weather to provide an alternate viewing space.
- K. Online Auction by Contractor
 - a) Auctions will be held at the COR's discretion.
 - b) Online auctions must be open to the public, through an Internet website with applicable security measures to protect against hacking. The contractor shall disclose on its website its backup plan for receiving bids should its website become unavailable.
 - c) Dealer auctions are prohibited.
 - d) The contractor shall conduct all sales in accordance with all applicable Federal, State, and Local laws, regulations, and ordinances.
 - e) The contractor shall post the Sales Terms and Conditions for ATF auctions and ATF Forfeited Property Sales Certification on their website.
 - f) Contractor shall affix a Buyer's Guide form to each Asset to be sold at auction and check off "AS IS – NO WARRANTY".
 - g) Under no circumstances will public bidders be charged a Processing Fee, Admission Fee, a sales list, or any other charges or fees, other than the bid price tendered by the winning bidder. Unless authorized in advance by the COR with written approval from the ATF Asset Forfeiture Division, the public bidders will not be charged a Buyer's Premium Fee. If a Buyer's Premium Fee is approved, then no commission shall be billed for those assets.
 - h) If a minimum bid is required, the COR will notify the contractor, in writing prior to the online auction start day. Contractor shall strive to meet and exceed all minimum bid requests. If a bid is less than minimum bid, the contractor shall seek COR approval prior to the final acceptance of the bid.
 - i) The contractor's internet website must allow for bids to be placed on an online platform with the ability to see bidding action with the Government's preference being that the contractor's internet website should be similar to popular online sales websites (such as eBay, etc.) and should offer industry standard online bidding features (ex: ability to see all bids received, automatic bid escalation selections, etc.).
 - j) The contractor shall post photographs of each item online, multiple photographs where detail in the item warrants. A full description of the item shall also be posted.
 - k) An ATF representative will be available via phone/email to approve/disapprove bids.
 - l) The contractor shall provide instructions on their website detailing their process for winning bidders to pick up the Asset(s) from their storage/auction location.

- m) The contractor shall determine, with COR concurrence, the best method of bid deposit collection. If deposit is not collected at registration, contractor must provide free storage if the Asset is sold, but the sale is not finalized. Forfeited bid deposits shall be given to the ATF.
- n) The ATF reserves the right to remove any asset from the auction at any time prior to sale.
- o) The contractor shall issue a receipt to the purchaser(s) for money received, which will indicate the purchaser's name, Asset selling price, and a description of the Asset
- p) The contractor shall receive and be responsible for all money collected during the auction. The ATF will not be responsible for money that is lost, stolen, received in error, or misapplied while in the hands of the contractor.
- q) The contractor shall provide the ATF with an auction results report that identifies the asset ID, purchaser's name and purchase price. This report shall be sent via email to the ATF within five (5) business days of the auction.
- r) The contractor shall submit gross sales proceeds and sales documents to the COR within five (5) business days of the auction via certified check, cashier's check, money order or Electronic Funds Transfer (EFT). All gross sales proceeds are property of the ATF and shall not be used by the contractor.
- s) The contractor shall not charge the ATF any sales fees, commissions, etc., for an Asset which is not sold.
- t) The ATF will cease paying storage expenses beginning on the day after the sale.
- u) Simulcast auctions if conducted in conjunction with a live auction are not considered an online auction.

L. Sealed Bid Sale

- a) Upon the order for disposal, the contractor shall
- b) The contractor shall coordinate with the COR regarding designated viewing period(s).
- c) The contractor shall create a bid invitation that shall include the following;
 - 1) Viewing date/time
 - 2) Bid closing date/time
 - 3) Minimum acceptable bid (Determined by COR)
 - 4) Bid Deposit (Determined by COR)
 - 5) Mailing address
 - 6) Sales Terms and Conditions
 - 7) Statement that all forfeited Assets are sold "AS IS, WHERE IS"
 - 8) Payment process
 - (i) Name, address, telephone number, and signature of purchaser
 - 9) Bid amount
- d) Contractor shall open all sealed bids publicly and announce the apparent highest bidder.
- e) The contractor shall record video and audio record all bid openings and shall provide recordings to the COR upon request. All recordings shall be turned over to the COR at the conclusion of contract.
- f) Auctions will be held at the COR's discretion.
- g) The sealed bid sale must be marketed and made available to the public. Dealer only sealed bid solicitations are prohibited.
- h) The contractor shall conduct all sales in accordance with all applicable Federal, State, and Local laws, regulations, and ordinances.
- i) The contractor's Internet website will clearly state that the contractor is conducting the sealed bid sale on behalf of the ATF.
- j) The contractor shall post photographs of each item online, multiple photographs where detail in the item warrants. A full description of the item shall also be posted.
- k) An ATF representative will be available via phone/email to approve/disapprove bids.
- l) The contractor shall provide instructions on their website detailing their process for winning bidders to pick up the assets(s) from their storage/auction location.
- m) The contractor shall post the Sales Terms and Conditions for ATF auctions

- n) Under no circumstances will public bidders be charged a Processing Fee, Admission Fee, or any other charges or fees, other than the bid price tendered by the winning bidder. Unless authorized in advance by the COR with written approval from ATF Headquarters, the public bidders will not be charged a Buyer's Premium Fee. If a Buyer's Premium Fee is approved by AFSPD then no commission shall be billed for those assets.
- o) If a minimum bid is required, the COR will notify the contractor, in writing.
- p) Contractor shall affix a Buyer's Guide form to each asset to be sold and check off "AS IS – NO WARRANTY".
- q) The contractor shall determine, with COR concurrence, the best method of bid deposit collection. If deposit is not collected at registration, contractor must provide free storage if the Asset is sold, but the sale is not finalized. Forfeited bid deposits shall be given to the ATF.
- r) ATF reserves the right to remove any asset from sale at any time prior to the sale.
- s) The contractor shall provide the ATF an auction results report that identifies the asset ID, purchaser's name and purchase price. This report shall be sent via email to the ATF within five (5) business days of the auction.
- t) Upon disposal the contractor shall execute the STO
- u) The contractor shall issue a receipt to the purchaser(s) for money received, which will indicate the purchaser's name, Asset selling price, and a description of the Asset including the VIN.
- v) The contractor shall receive and be responsible for all money collected. The ATF will not be responsible for money that is lost, stolen, received in error, or misapplied while in the hands of the contractor.
- w) The contractor shall submit gross sales proceeds and sales documents to the COR within five (5) business days of the auction via certified check, cashier's check, money order or Electronic Funds Transfer (EFT). All gross sales proceeds are property of the ATF and shall not be used by the contractor.
- x) The contractor shall not charge the ATF any sales fees, commissions, etc., for an asset which is not sold.
- y) ATF will cease paying storage expenses beginning on the day after the sale.
- z) The contractor will not provide purchaser/winning bid information to any persons, corporations, or government entities except ATF.

M. Advertising for Sealed Bid Auction

- a) Contractor shall advertise all sealed bid sales on the contractor's operated website. The contractor's Internet can advertise on any other platforms to increase customer base awareness of the sale at their own expense. If the COR deems it appropriate to order any other specialty advertising, it will be ordered through the issuance of a STO.
- b) Contractor website will clearly state that the contractor is conducting sales of assets on behalf of ATF.
- c) The website should clearly state where the asset is located for purposes of public viewing
- d) Contractor SHALL NOT DISCLOSE CATS ID and ATF Case numbers in any advertisement.
- e) Contractor shall send COR the link to their website for posting of advertisement on the ATF and Department of Justice websites.
- f)

N. Viewing Period for Sealed Bid Auction

- a) The contractor, prior to viewing day, shall prepare the property for sale to maximize potential sales value (this includes washing, cleaning the asset, and removal all documents and paperwork from inside the Asset. as well as ensuring the facility is clean, orderly and ready for public view).
- b) The contractor is required to allow the public to view and access the AAssets prior to the day of auction. The viewing day shall be for an 8-hour period, and the viewing shall be on the day prior to sale. Contractor can hold additional viewing days. Any deviation from the minimum viewing period must be approved in advance by the COR.
- ⇒ Adequate security during the viewing day shall be the responsibility of the Contractor. Contractor shall provide a knowledgeable representative who can provide the public with information related

to the asset and can start (vehicle) the Asset as determined by the COR. Contractor is ultimately responsible and acts as a representative of ATF.

- d) The viewing area shall be segregated from the remainder of the storage facility by a barrier to prevent unauthorized access to the non-forfeited Assets. Viewing area should be orderly, clean, and free of potential hazards. If the viewing period is to be held outside, contractor shall make arrangements in case of weather to provide an alternate viewing space.
- e) Assets offered for sale shall be unlocked for inspection. If there is a specialty or high valued asset in the offering and there are potential security concerns, it is the COR's responsibility to discuss logistics with the contractor in advance of the viewing period.
- f)

ATTACHMENTS:

Appendix A – U.S. Department of Transportation Hazardous Materials Categories

Appendix A – Hazardous Materials

Class 1 – Explosives

- Division 1.1 Explosives with a mass explosion hazard
- Division 1.2 Explosives with a projection hazard
- Division 1.3 Explosives with predominately a fire hazard
- Division 1.4 Explosives with no significant blast hazard
- Division 1.5 Very sensitive explosives; blasting agents
- Division 1.6 Extremely insensitive detonating devices

Class 2 – Gases

- Division 2.1 Flammable Gases
- Division 2.2 Non-flammable, non-toxic compressed gases
- Division 2.3 Gases toxic by inhalation

Class 3 – Flammable Liquids (and Combustible Liquids)

- Flammable liquids – liquid with a flash point of 140°F or less
- Combustible liquid – liquid with a flash point between 140°F and 200°F that does not meet any other hazard class definition.

Class 4– Flammable Solids; Spontaneously Combustible Materials; Dangerous when Wet Materials

- Division 4.1 Flammable solids – wetted class 1 explosives, self-reactive materials or readily combustible solids
- Division 4.2 Spontaneously combustible materials -pyrophoric or self-heating materials

- Division 4.3 Dangerous when wet materials – gives off flammable or toxic gas or become spontaneously combustible on contact with water

Class 5 — Oxidizers and Organic Peroxides

- Division 5.1 Oxidizers – by yielding oxygen, causes or enhances the combustion of other materials
- Division 5.2 Organic peroxides – organic compounds with the bivalent R-O-O-R structure where at least one R is a carbon chain, except for materials that meet class 1 (Explosive) definition, or are “forbidden” on the HMT.

Class 6 — Toxic Materials and Infectious Substances

- Division 6.1 Poisonous materials – a liquid with an LD50 oral not more than 500 mg/Kg, or a solid with an LD50 oral not more than 200 mg/Kg, or a compound with a LD50 dermal not more than 1000 mg/Kg, or a dust/mist with a LC50 or not more than 10 mg/L
- Division 6.2 Infectious substances – Go to Guide to Shipping Biological Materials and Biological Materials Online Certification for more information.

Class 7 — Radioactive Materials

- Any material with a specific activity greater than 0.002 microcuries per gram (mCi/g.) The specific activity of a nuclide means the activity of the nuclide per unit mass of that nuclide.*** All Class 7 shipments must be coordinated through Radiation Safety 515-2894

Class 8 — Corrosive Materials

Class 9 — Miscellaneous Dangerous Goods

- Materials that present a hazard during transport but do not meet other hazard class definitions. Examples are dry ice and lithium batteries.